

MOTION TO QUASH THIRD-PARTY SUBPOENA

Eastbank Infrastructure v. City of Riverton
Case No. RV-CV-2026-00725. Filed March 12, 2026.

Eastbank moves to quash a subpoena issued to engineering consultant Larkspur Group during a dispute over bridge contract CTR-2025-162. Eastbank seeks a \$925,000 change order for corroded expansion joints and a 63-day extension.

The city subpoena requests every photograph, field note, draft report, and message concerning the Monroe Avenue bridge from January 2023 through bid opening.
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The contractor argues that the request is overbroad and includes privileged material prepared after the dispute began. Riverton responds that six photographs taken before bidding may show the same corrosion Eastbank later called an unforeseen condition.

At a March 11 conference, Judge Samuel Ortiz directed Larkspur Group to preserve the records and proposed a private review of documents created after February 22, 2026.

Eastbank asks the court to limit production to pre-bid inspection material and to require the city to pay the consultant's retrieval costs. The city estimates those costs at \$7,800; Eastbank estimates \$31,000.

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